

Attestation of *Orr v. Trump* Class Membership

Attestation to accompany Forms DS-11, DS-82, and DS-5504 submitted by members of a class certified in *Orr v. Trump*, Case No. 1:25-cv-10313, in the U.S. District Court for the District of Massachusetts, who are eligible for Preliminary Injunctive relief

You must submit this completed and signed attestation with your application or within 90 days after the Department notifies you it is needed. Failure to do so will result in your application being adjudicated in your sex, consistent with E.O. 14168.

If I am selecting a sex marker that is different from the sex marker on my original birth certificate, or if I am selecting an “X” sex marker, as indicated by the sex marker checkbox I have selected below, I confirm that at least one of the following is true:

- 1) My gender identity is different from my sex, or
- 2) I have been diagnosed with gender dysphoria.

I further confirm that I am applying for a passport or data correction because one (or more) of the following is true:

- 1) I do not have a currently valid passport,
- 2) I need to renew my current passport because it expires within one year,
- 3) I need to make changes to my passport to have the sex designation on it align with my gender identity or to reflect a name change, or
- 4) I need to apply for another passport because my passport was lost, stolen, or damaged.

Sex Marker Requested for U.S. Passport (applicant must select one):

- ☐ M for male (also check “M” for “Sex” on application form)
- ☐ F for female (also check “F” for “Sex” on application form)
- ☐ X (do not check “M” or “F” for “Sex” on application form)

Certification:

I declare under penalty of perjury that the foregoing is true and correct and that I am not a party plaintiff in *Schlacter v. Department of State*, Case No. 1:25-cv-01344, in the U.S. District Court for the District of Maryland.

Signature of applicant or parent/guardian if the applicant is a minor

Name of applicant

 (please print)

Name of parent/guardian (if necessary)

 (please print)